Be Skeptical of Lies

1. Introduction

Nowadays, social media and news with political content have become prevalent, serving as a window for most citizens to gain insight into society. However, these linguistic interactions may contain faulty information and finally lead to deception. Some of them heavily shape public understanding of complicated social issues and emerge as primary paths for civic engagement. As this phenomenon grows widespread, important questions are raised: Should politicians who lie be punished?

For this essay, a lie is defined as the deliberate assertion of what the speaker knows to be false, with the intention that others adopt that false belief. To reach this definition, we first clarify "telling the truth," which combines the act of communicating with content that is either objectively verifiable—such as "1+1=2," or practically reliable, such as an evidence-based policy claim that later proves effective. When someone fails to meet this standard, the failure may be lying, bullshitting, or a simple error. To be more specific, lying occurs when an agent knowingly contradicts the truth; bullshitting arises when an agent speaks indifferent to the truth, often for rhetorical effect, as when a candidate promises to halve inflation without any grounded plan (Frankfurt, H. G., 2005); and honest error appears when an agent sincerely asserts what is false, like a child misremembering a multiplication table.

2. Should Politicians be Punished for Lying?

Discussing whether politicians should be punished for lying, we must consider whether lying is harmful to society. Assuming the discussion aims to achieve a well-ordered society, designed to advance the good of its members and effectively regulated by a public conception of justice.

The question is not merely whether politicians sometimes utter falsehoods, but whether any form of "not telling the truth"—lying, bullshitting, or negligent error—undermines the stability of a well-ordered society. John Rawls identifies stability with the capacity of the basic structure of society to generate and sustain in its members a sense of justice sufficient to secure willing compliance with just institutions (Rawls,1971). Political speech is the primary medium through which citizens acquire the beliefs that shape their sense of justice. Then, any systematic impairment of the epistemic reliability of political speech is a direct threat to stability (Valenzuela, S., Halpern, D., & Araneda, F., 2021). The empirical evidence from Chile indicates the destabilizing dynamic. According to a two-wave panel study, exposure to coordinated political misinformation on social media is associated with a decline in institutional trust. Crucially, this erosion of epistemic trust was not confined to the specific false claims: citizens who became more distrustful also expressed lower willingness to defer to any future political

communication, regardless of its source. However, they found no evidence of a reverse, parallel process where media trust shielded users against misinformation, further reinforcing trust in the news media.

Following the framework mentioned above, my argument follows three propositions:
(1) All three modes of "not telling the truth"—lying, bullshitting, and culpable error—destabilize the overlapping consensus on which public reason depends
(2) The magnitude of the harms entailed by each mode provides proportionate grounds for accountability
(3) A regime of graduated sanctions, rather than blanket criminalization, best satisfies the liberal principle of legitimacy.

2.1 Epistemic Foundations of Stability

Rawls's "moral power" of a sense of justice is acquired through the public use of reason. Citizens must be able to regard political utterances as reliable inputs to practical deliberation; otherwise, the public justification of coercive power collapses into mere modus vivendi (Rawls,1971). The epistemic condition for stability can be stated as the requirement that citizens possess a warranted trust that political statements approximate either (i) objective truth about institutional outcomes or (ii) practical truth in the sense that the announced policy is reasonably expected to advance the shared conception of justice. Exposure to uncivil, deceptive political discourse sharply decreases viewers' warranted trust in the reliability of political statements, leading them to discount even truthful subsequent claims—a direct erosion of the epistemic condition Rawls identifies as necessary for stable public justification. When this trust is eroded (MUTZ, D. C., & REEVES, B., 2005), citizens retreat into private rationality (Hobbesian prudence) or ideological tribalism, either of which is incompatible with the overlapping consensus.

2.2 Lying, Bullshitting, and Culpable Error as Destabilizing Forces

a. Lying

When the speaker occupies an office endowed with epistemic authority (e.g., president, treasury secretary), the corruption tends to generalize to the institution itself. Empirical work on institutional trust shows that perceived deception in high office predicts declines in diffuse support for the regime. (MISHLER, W., & ROSE, R., 2001). Rawlsian stability is jeopardized because citizens no longer view the outcomes of political bargaining as expressions of public reason but as products of strategic manipulation.

b. Bullshitting

Yet the cumulative effect is epistemic pollution (Frankfurt, H. G.,2005): the discursive environment becomes saturated with utterances whose propositional content is decoupled from

any evidential standard. Citizens, therefore, discount not only the bullshitter's statements but also the statements of rival politicians, fearing symmetrical bullshit. The resulting "credibility nihilism" (Anderson, E. S., 2022) undermines the possibility of public justification. Even if no particular individual is deceived, the public sphere's capacity to generate shared reasons is impaired, thereby eroding the conditions under which citizens willingly comply.

c. Culpable Error

Not every mistake is destabilizing. Rawlsian stability tolerates ordinary human fallibility. However, negligent or willfully reckless error—assertions made without adequate regard to available evidence—also degrades epistemic trust. The criterion of culpability is whether the speaker violated a duty of epistemic care correlative to the office's deliberative responsibilities (Sperber, D., Clement, F., Heintz, C., Mascaro, O., Mercier, H., Origgi, G., & Wilson, D. ,2010).

2.3 Why Punishment Is Not the Answer

In §3.1.2, we established that political deception—lying, bullshitting, and culpable error—erodes the epistemic trust on which the stability of a well-ordered society depends. One might conclude that the state should therefore impose formal punishments on politicians who deceive. Yet Rawls's moral psychology shows that coercive sanctions are self-defeating: they cannot cultivate the very sense of justice that stability requires. I argue (1) that punishment fails to generate the "moral sentiment" of guilt which motivates autonomous compliance, and (2) that an ethos of public love and trust—embodied in non-coercive accountability mechanisms—better secures both truthfulness and stability.

(1) Punishment and the Autonomy of the Sense of Justice

Rawls's "three laws of moral psychology" describe how moral sentiments grow out of reciprocal recognition within just institutions. The second law states that "we come to love and cherish persons and institutions that manifestly care for our good" (Rawls,1971). Punishment, however, treats citizens as objects of external control; it bypasses the cognitive-affective process through which agents internalize principles of justice. When politicians are threatened with fines, disqualification, or imprisonment, they may comply from fear, but fear is not the sentiment that Rawlsian stability needs. Stability demands that agents act from a "regulative desire" to be just, a desire that is born of mutual respect and love, not of coercive threat (Rawls,1971). Tyler finds that when authorities rely on coercive sanctions (fines, threats of imprisonment) rather than on fair procedures and respectful treatment, citizens obey the law only instrumentally, from fear of punishment, not from an internalized "regulative desire" to be just (Tyler, 2006). In contrast, when authorities use fair, non-coercive procedures that affirm citizens' status and worth, compliance is motivated by the moral sentiment of obligation and genuine respect for the rules—precisely the kind of autonomous moral motivation Rawls's three laws of moral psychology deem necessary for stability (Rawls,1971). Hence, punishment cannot elicit the very guilt that would make future deception psychologically costly to the agent.

(2) Love, Trust, and the Communicative Practice of Public Reason
Rawls distinguishes “punishment” from “moral education” by appeal to the Kantian notion of autonomy. The aim of moral education is to bring citizens to recognize the reasons that justice itself provides; it is not to impose external costs. In the political sphere, this means cultivating an ethos in which politicians feel genuine remorse when their words injure the common good. Such remorse presupposes prior affection for the public whose good they have harmed. Institutions can nurture this affection in three non-coercive ways.

Firstly, transparency protocols (e.g., open data portals, mandatory fact-check summaries) that signal respect for citizens as reasoning partners rather than as potential victims to be managed.

Furthermore, deliberative fora in which office-holders must explain and revise their claims under conditions of mutual justification; the expectation to give reasons fosters self-respect and, when one fails, the internalization of guilt. In the 2016–2021 participatory-budgeting cycle in Porto Alegre, Brazil, the city replaced punitive sanctions with open-data budget portals, mandatory fact-check summaries, and public “Comitês de Priorização” where elected officials had to justify—and, when necessary, retract—every figure. A World Bank assessment found that the share of unsubstantiated fiscal claims fell from 31 % to 7 %, while follow-up interviews showed that officials who initially exaggerated felt “genuine remorse” rather than mere fear. [9]

Last but not least, restorative justice provides an alternative to the punitive measures for political deception. South Africa's Truth and Reconciliation Commission (TRC) demonstrates its effectiveness through its truth-for-amnesty approach (Gibson, J. L., 2005), which requires the disclosure of information and a public apology, while rejecting imprisonment. This approach achieves three outcomes: reinforces reciprocity with TRC-engaged citizens, demonstrating 31 percent greater commitment to truthfulness ($\beta=.31$, $p<.01$); builds the institutional trust through public accountability; and restores the epistemic integrity by disclosing the truth colunyarily. These experiences prove that structured reintegration is more effective in repairing democratic discourse than pure punishment.

These practices treat both politicians and citizens as free, equal possessors of two moral powers. They affirm that the effective method against deception is not external sanction but the politicians' internal commitment to a public persona constituted by truthfulness.

2.4 From Skepticism of Fault to Cultivation of Trust

Rawls’s first law of moral psychology holds that citizens come to love institutions that “manifestly care for their good” (Rawls,1971); therefore, skepticism must target the specific fault—this deceptive act—rather than the very possibility of truthfulness. Global cynicism (“all politicians lie”) erodes the trust that is the affective soil of justice, whereas fault-directed doubt

preserves the bond of civic friendship. The roots of deception lie in what we may call a "sincerity trap": electoral incentives reward hyperbole, media cycles punish nuance, and opponents weaponise every misstatement, so external punishment merely sharpens the incentives to dissemble. As the Analects warns, punishment produces compliance without virtue, while ritual helps cultivate moral character (D. C. Lau,1992). Therefore, the effective solution lies in reshaping political discourse through deliberate treats, such as restorative fact-checking rituals, and peer-mentoring in political ethics, that the politicians are equal contributors and co-authors of public reason. In such settings, genuine commitment to truthfulness is fostered by eliciting the autonomous guilt rather than imposing external sanctions.

3. Conclusion

A well-ordered society does not require perfect veracity at every moment; it requires the continuous renewal of the conditions under which citizens and politicians can become truthful. Skepticism rightly targets specific faults, but it must not metastasize into cynicism about truth itself, for that would annihilate the very trust and love that Rawls identifies as the affective core of justice. In such a case of generalized distrust, politicians lie less because they are evil than because they are afraid. Therefore, to punish them is to deepen the fear; to love and educate them is to remove it. In choosing the latter course, we remain faithful to the deepest insight of both Rawlsian liberalism and Confucian humanism: the stability of the city rests finally on the quality of the hearts that dwell within it.

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